

## **TENTATIVE RULING(S) FOR May 8, 2026** **Department S14 – Judge Winston Keh**

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**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

**CIVSB2434205**

**RE: Barragan vs Heritage Health Care et al**

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### **TENTATIVE RULING(S):**

Plaintiff Michelle Barragan (“Plaintiff” or “Barragan”) filed the instant wage and hour class action on November 13, 2024. Plaintiff’s Second Amended Complaint (SAC) drew a Demurrer and Motion to Strike from Defendant Heritage Health Care, Inc. *dba* Heritage Gardens Healthcare (“Defendant” or “HHC”).

Defendant’s motions were filed with a request for judicial notice and supported by a declaration from John Keeney, Esq. The motion to strike was also filed with an additional declaration by Cathy West.

On March 24, 2026, the Plaintiff filed an opposition to the demurrer, opposition to Defendants’ request for judicial notice, their own request for judicial notice and a declaration of Sareen K.

Klakh, Esq. Plaintiff also filed an opposition to the motion to strike with all the above and evidentiary objections.

On May 1, 2026, Defendant filed replies and multiple objections.

### Analysis

Request for Judicial Notice. In support of the Demurrer, the Defendants seek to have the Court take judicial notice of the following because they are records of the Court.

1. The December 24, 2024, Notice Letter of on Behalf of Jorge Nava Gomez and Aggrieved Employees Under California Labor section 2699.3, LWDA-CM-1069251-24, a true and correct copy of which is attached hereto as Exhibit A;
2. The September 26, 2024, Notice Letter of on Behalf of Michelle Barragan and Aggrieved Employees Under California Labor section 2699.3, LWDA-CM-1052944-24, a true and correct copy of which is attached hereto as Exhibit B;
3. The February 13, 2025, Letter from the State of California Labor & Workforce Development Agency to Bibiyan Law Group re Notice Directing Submission of Amended PAGA Notices, a true and correct copy of which is attached hereto as Exhibit C.

Plaintiff in opposition, request judicial notice of the following:

Exhibit A: Court Order on Motion for Judgement on the Pleadings in *Sara Jara v. Regus Management Group, LLC et. al.*, Superior Court of California County of Sonoma, Case No. 24CV01857

Exhibit B: Court Order Granting in Part and Denying In Part Defendants' Demurrer to Plaintiff's Complaint in *James Caramazza v. Greystar Management Services LP et. al.*, Superior Court of California County of San Francisco, Case No. CGC-20-584345

Exhibit C: Minute Order Ruling on Demurrer and Motion to Strike in *Larry Beneviste v. Gelson's Markets et. al.*, Superior Court of California County of Ventura, Case No. 56-2022-00570409-CU-OE-VTA

“Strictly speaking, a court takes judicial notice of facts, not documents.” (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265, disapproved on another ground in *Yvanova v. New Century Mortg. Corp.* (2016) 62 Cal.4th 919, 939, fn. 13.) “When a court is asked to take judicial notice of a document, the propriety of the court's action depends upon the nature of the facts of which the court takes notice from the document.” (*Ibid.*) In the case of court records, not all matters contained therein (e.g., pleadings, affidavits, etc.) are indisputably true. While the existence of any document in a court file may be judicially noticed, the truth of matters asserted in such documents – including the factual findings of the judge who was sitting as the trier of fact – is not necessarily subject to judicial notice unless the document is an order, statement of decision, or judgment. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1569; *Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 22.)

Here, the Court will take judicial notice of the PAGA letter to the LWDA in this matter pursuant to *Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 754. Additionally, the Plaintiff does not object and references it in the SAC and in Mrs. Khakh's declaration. However, all of the other requests from Defendant and Plaintiff are irrelevant in this proceeding.

The Court takes judicial notice of Defendant Ex. 2 only.

**Objection.** Plaintiff objects to the request for judicial notice in Exhibit A and C, since the documents are not necessary, helpful or relevant to the instant action. Defendant objects to Plaintiff's request as irrelevant. The Court agrees with both. Therefore, the Court sustains Plaintiff and Defendants' objections to the request for judicial notice for the reasons stated above. Defendant additionally objects to the declaration of Sareen Khakh, Esq. The declaration has no place in a demurrer. Thus, the Court sustains those objections.

**Timing.** While Code Civ. Proc., §430.40 states a demurrer should be filed within 30 days, the SAC in this matter was served electronically on November 10, 2025. Since the document was

served electronically, Defendant had two extra days to file. (Code Civ. Proc., §1010.6.) Hence, the Court finds the demurrer was timely filed on December 12, 2025.

*Analysis.* Both the demurrer and the motion to strike concern the PAGA notice provided in this action. Defendant claims that since Plaintiff's firm has notice from the LWDA (RJN, Ex. 3) in other cases stating that its PAGA notice was deficient, and that this PAGA notice is similar to one of the cases on the list, the PAGA cause of action should be stricken/subject to demurrer since it too general. However, while not taking judicial notice of the Letter from the LWDA, and as Plaintiff points out, this case is not one of the 137 cases the LWDA found the notice deficient. Defendant claims this notice is similar to one of the cases on the list, *Gruma Corporation*. (RJN, Ex. 1.)

PAGA allows "aggrieved employees, acting as private attorneys general, to recover civil penalties for Labor Code violations, with the understanding that labor law enforcement agencies were to retain primacy over private enforcement efforts." (*Thurman v. Bayshore Transit Mgmt., Inc.* (2012) 203 Cal.App.4th 1112, 1125; see also, *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 379-380.) Section 2699, subdivision (a) provides, in relevant part: "[A]ny provision of this code that provides for a civil penalty to be assessed and collected by the Labor and Workforce Development Agency ... for a violation of this code, may, as an alternative, be recovered through a civil action brought by an aggrieved employee on behalf of himself or herself and other current or former employees pursuant to the procedures specified in Section 2699.3." (Lab. Code, § 2699, subd. (a).) Subdivision (c) defines an "aggrieved employee" as "any person who was employed by the alleged violator and against whom one or more the alleged violations was committed." (Lab. Code, § 2699, subd. (c).)

A claim alleging a violation of any provision listed in Section 2699.5 may not be commenced (or a pending action amended to include a PAGA claim) until an aggrieved employee gives written notice by certified mail to the employer and by online filing with the LWDA specifying the Labor Code provisions violated, "including the facts and theories to support the alleged violation." (Lab. Code, § 2699.3(a)(1); *CaliberBodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365,

370). The LWDA must notify the employer and the aggrieved employee that it does not intend to investigate the alleged violation within 60 days. When the employee receives the notice, or if the agency provides no notice within 65 calendar days, the employee may bring a civil action under Labor Code section 2699. The statute further provides that if the LWDA intends to investigate, it must notify the employer and the aggrieved employee of its decision within 33 days of the postmark date of the notice received, and then LWDA has 120 calendar days to conduct the investigation and issue a citation, or notify the employer and employee that no citation will be issued, at which time, the employee may file a civil action. (Lab. Code, § 2699.3.)

[\*Esparza v. Safeway, Inc.\* \(2019\) 36 Cal.App.5th 42, 59 states:](#)

Before bringing a PAGA action, an aggrieved employee must give the LWDA written notice of the facts and theories supporting the Labor Code violations alleged. (Lab. Code, §§ 2699.3, subds. (a)(1)(A), (b)(1) & (c)(1)(A) [civil action “shall commence only after” aggrieved employee gives notice].) As California courts have repeatedly recognized, PAGA's prefiling notice requirement is a mandatory precondition to bringing a PAGA claim. (E.g., *Khan v. Dunn-Edwards Corp.* (2018) 19 Cal.App.5th 804, 808–810 [228 Cal. Rptr. 3d 90] [affirming summary judgment against PAGA plaintiff due to noncompliance with the prefiling notice requirement]; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 545 [220 Cal. Rptr. 3d 472, 398 P.3d 69] (*Williams*) [PAGA plaintiff must provide prefiling notice as a “condition of suit”].) The employee may bring a PAGA action only after the LWDA either fails to act within a specified time or notifies the employee that the LWDA does not intend to take further action. (Lab. Code, § 2699.3, subd. (a)(2)(A), (B); see also *id.*, § 2699.5 [these procedures apply to alleged violations of Lab. Code, § 226.7].)

A PAGA action is subject to a one-year statute of limitations. (*Brown v. Ralphs Grocery Co.* (2018) 28 Cal.App.5th 824, 839 (*Brown*), citing Code Civ. Proc., § 340, subd. (a).)

[\*Santos v. El Guapos Tacos, LLC\* \(2021\) 72 Cal.App.5th 363, 366-367 states:](#)

Before bringing a PAGA claim, a plaintiff must comply with administrative procedures outlined in Labor Code section 2699.3, requiring notice to the Labor and Workforce Development Agency (LWDA) and allowing the employer an opportunity to cure unspecified violations not listed in Labor Code section 2699.5. (Lab. Code, §§ 2699, subds. (a), (c), (g)(1), 2699.3.) “Our Supreme Court has explained that: ‘[a]s a condition of suit, an aggrieved employee acting on behalf of the state and other current or former employees must provide notice to the employer and the responsible state agency “of the specific provisions of [the Labor Code] alleged to have been violated, including the facts and theories to support the alleged violation.”’” (*Khan, supra*, 19 Cal.App.5th at p. 809.)

*Hutcheson v. Superior Court* (2022) 74 Cal.App.5th 932, 943 states:

Notice serves two purposes: it allows the LWDA “to decide whether to allocate scarce resources to an investigation,” and it allows the employer to submit a response to the LWDA which can inform the agency's decision. (*Williams v. Superior Court, supra*, 3 Cal.5th at p. 546, citing § 2699.3, subd. (a)(1)(B).)

There is no question that Plaintiff filed a PAGA Notice. Defendant just argues the notice is not sufficient. In *Brown v. Ralphs Grocery Co., supra*, the appellate court discussed the notice requirements of Section 2699.3, subdivision (a), in the context of PAGA claims and amended PAGA claims alleged over a five-year period. Regarding the notice requirement, the *Brown* court cited to the California Supreme Court case of *Williams v. Superior Court* (2017) 3 Cal.5th 531. *Brown* stated:

Plaintiff contends that the trial court erroneously concluded that the 2009 Notice was deficient under section 2699.3, subdivision (a). In its decision granting defendants' motion for judgment on the pleadings following the second amended complaint and its decision sustaining defendants' demurrer to the third amended complaint, the trial court found the 2009 Notice deficient for two reasons. The trial court concluded the notice did not sufficiently allege “facts and theories” to support the violations claimed in the first amended complaint (i.e., violations of §§ 204, 226, subd. (a), 226.7, and 512) and did not refer to violations of Labor Code statutes that plaintiff later

alleged in the second and third amended complaints (i.e., violations of §§ 201, 202, 203, 558, 1174, subd. (d), and 1198).<sup>5</sup> We agree in part. After the trial court's rulings, our Supreme Court issued its decision in *Williams*. The Supreme Court identified “the clear legislative purposes [PAGA] was designed to serve,” namely “to advance the state's public policy of affording employees workplaces free of Labor Code violations, notwithstanding the inability of state agencies to monitor every employer or industry” and “to remediate present violations and deter future ones.” (*Williams, supra*, 3 Cal.5th at p. 546.)

In the context of deciding whether a PAGA plaintiff must have “some modicum of substantial proof before proceeding with discovery,” the Supreme Court addressed the PAGA notice requirement: “Nothing in ... section 2699.3, subdivision (a)(1)(A), indicates the ‘facts and theories’ provided in support of ‘alleged’ violations must satisfy a particular threshold of weightiness, beyond the requirements of nonfrivolousness generally applicable to any civil filing. (See Code Civ. Proc., § 128.7.) The evident purpose of the notice requirement is to afford the relevant state agency, the [LWDA], the opportunity to decide whether to allocate scarce resources to an investigation, a decision better made with knowledge of the allegations an aggrieved employee is making and any basis for those allegations. Notice to the employer serves the purpose of allowing the employer to submit a response to the agency (see [] § 2699.3, subd. (a)(1)(B)), again thereby promoting an informed agency decision as to whether to allocate resources toward an investigation. Neither purpose depends on requiring employees to submit only allegations that can already be backed by some particular quantum of admissible proof.” (*Williams, supra*, 3 Cal.5th at pp. 545–546; see also *Caliber, supra*, 134 Cal.App.4th at p. 375 [notice provision intended to “allow[] the [LWDA] to act first on more “serious” violations such as wage and hour violations and give employers an opportunity to cure less serious violations”].)

The Supreme Court in *Williams* recognized the distinction in the notice provision between the alleged violation (i.e., “the allegations an aggrieved employee is making”) and the facts and theories to support the alleged violation (i.e., “any basis for those allegations”). (*Williams, supra*,

3 Cal.5th at p. 546.) Federal court decisions also recognize that the notice provision requires something more than bare allegations of a Labor Code violation. In *Alcantar v. Hobart Service* (9th Cir. 2015) 800 F.3d 1047, the court held the plaintiff's notice was "a string of legal conclusions with no factual allegations or theories of liability to support them." (*Id.* at p. 1057.) The notice identified plaintiff's employer and stated the employer "'(1) failed to pay wages for all time worked; (2) failed to pay overtime wages for overtime worked; (3) failed to include the extra compensation required by ... section 1194 in the regular rate of pay when computing overtime compensation, thereby failing to pay Plaintiff and those who earned additional compensation for all overtime wages due"; and so on. (*Ibid.*) The court reasoned these bare allegations were insufficient because they simply paraphrased the allegedly violated statutes. (*Ibid.* ["The only facts or theories that could be read into this letter are those implied by the claimed violations of specific sections of the California Labor Code"].) The notice did not allow the LWDA "to intelligently assess the seriousness of the alleged violations" or give the employer enough information "to determine what policies or practices are being complained of so as to know whether to fold or fight." (*Ibid.*; see, e.g., *Green v. Bank of America, N.A.* (9th Cir. 2015) 634 Fed. Appx. 188, 191 [notice stating "plaintiffs could use a seat in their position" was sufficient for "simple seating claim"]; *Moua v. International Business Machines Corp.* (N.D. Cal., Jan. 31, 2012, No. 5:10-cv-01070 EJD) 2012 WL 370570, p. \*5 [notice "identifies at least some alleged facts and theories"]; *Mireles v. Paragon Systems, Inc.* (S.D. Cal., Feb. 9, 2016, No. 13-cv-00122-L-BGS) 2016 WL 7634439, p. \*5 [notice reciting elements from the Lab. Code and a wage order and alleging a violation of § 226.7 "fails to provide any facts, not implied by reference to the Labor Code or Wage Order, as to how [the] defendant violated ... [s]ection § 226.7"]; *Cardenas v. McLane Foodservices, Inc.* (C.D. Cal. 2011) 796 F.Supp.2d 1246, 1260 ["the plain meaning" of the phrase "'facts and theories to support [the] alleged violation'" "suggests that [the p]laintiffs were required to put forward sufficient facts to support their claims of labor violations"].) (*Brown v. Ralphs Grocery Co.* (2018) 28 Cal.App.5th 824, 835-837.) *Williams v. Superior Court* (2017) 3 Cal.5th 531, 545-546 states:

Nothing in Labor Code section 2699.3, subdivision (a)(1)(A), indicates the “facts and theories” provided in support of “alleged” violations must satisfy a particular threshold of weightiness, beyond the requirements of nonfrivolousness generally applicable to any civil filing. (See Code Civ. Proc., § 128.7.) The evident purpose of the notice requirement is to afford the relevant state agency, the Labor and Workforce Development Agency, the opportunity to decide whether to allocate scarce resources to an investigation, a decision better made with knowledge of the allegations an aggrieved employee is making and any basis for those allegations. Notice to the employer serves the purpose of allowing the employer to submit a response to the agency (see Lab. Code, § 2699.3, subd. (a)(1)(B)), again thereby promoting an informed agency decision as to whether to allocate resources toward an investigation. Neither purpose depends on requiring employees to submit only allegations that can already be backed by some particular quantum of admissible proof.

PAGA's standing provision similarly contains no evidence of a legislative intent to impose a heightened preliminary proof requirement. Suit may be brought by any “aggrieved employee” (Lab. Code, § 2699, subd. (a)); in turn, an “aggrieved employee” is defined as “any person who was employed by the *alleged* violator and against whom one or more of the *alleged* violations was committed” (*id.*, subd. (c), italics added). If the Legislature intended to demand more than mere allegations as a condition to the filing of suit or preliminary discovery, it could have specified as much. That it did not implies no such heightened requirement was intended.

Moreover, to insert such a requirement into PAGA would undercut the clear legislative purposes the act was designed to serve. PAGA was intended to advance the state's public policy of affording employees workplaces free of Labor Code violations, notwithstanding the inability of state agencies to monitor every employer or industry. (*Iskanian v. CLS Transportation Los Angeles, LLC, supra*, 59 Cal.4th at p. 379; *Arias v. Superior Court* (2009) 46 Cal.4th 969, 980–981 [95 Cal. Rptr. 3d 588, 209 P.3d 923].) By expanding the universe of those who might enforce the law, and the sanctions violators might be subject to, the Legislature sought to

remediate present violations and deter future ones. These purposes would be ill served by presuming, notwithstanding the failure explicitly to so indicate in the text, that deputized aggrieved employees must satisfy a PAGA-specific heightened proof standard at the threshold, before discovery.

Other federal courts also found that the notice provision required something more than bare allegations of a Labor Code violation or a paraphrase of the allegedly violated statutes. (See, e.g., *Alcantar v. Hobart Service* (9th Cir. 2015) 800 F.3d 1047, 1057.) Notices that did not allow the LWDA “to intelligently assess the seriousness of the alleged violations,” or give the employer adequate information “to determine what policies or practices are being complained of so as to know whether to fold or fight,” were found to be deficient. (*Ibid.*)

In *Alcantar v. Hobart Service* (9th Cir. 2015) 800 F.3d 1047 (*Alcantar*), the plaintiff’s PAGA Notice stated he was a former employee of the defendant, and it alleged the defendant failed to pay wages for all time worked, including overtime, to provide accurate wage statements, to provide reimbursement for work related expenses, to provide off-duty meal periods and to pay compensation for work without off-duty meal periods. The PAGA Notice also stated the sections of the Labor Code the defendant was allegedly in violation. (*Alcantar, supra*, 800 F.3d at p. 1057.) The letter at issue specifically said:

Our offices have been retained by Joseluis Alcantara [sic] (Plaintiff). Plaintiff is a former employee of ITW Food Equipment Group, LLC aka Hobart Service (Defendant). Plaintiff contends that Defendant (1) failed to pay wages for all time worked; (2) failed to pay overtime wages for overtime worked; (3) failed to include the extra compensation required by California Labor Code section 1194 in the regular rate of pay when computing overtime compensation, thereby failing to pay Plaintiff and those who earned additional compensation for all overtime wages due; (4) failed to provide accurate wage statements to employees as required by California Labor Code section 226; (5) failed to provide reimbursement for work related expenses as required by Labor Code § 2802; and, (6) failed to provide off-duty meal periods and to pay compensation for work without off-duty meal periods to its California employees in

violation of California Labor Code sections 226.7 and 512, and applicable Industrial Welfare Commission orders. Said conduct, in addition to the forgoing, violated each Labor Code section as set forth in California Labor Code section 2699.5.

The *Alcantar* Court held the letter was “a series of legal conclusions,” as “[t]he only facts or theories that could be read into this letter are those implied by the claimed violations of specific sections of the California Labor Code—that [the defendant] failed to pay wages for time worked, failed to pay overtime wages for overtime worked, failed to include the extra compensation required by § 1194 in the regular rate of pay when computing overtime compensation, and so on. This is insufficient.” (*Ibid.*) Since the intent of section 2699.3 of the Labor Code was “to cure perceived abuses of the Act,” the “[p]laintiff’s letter—a string of legal conclusions with no factual allegations or theories of liability to support them—is insufficient to allow the Labor and Workforce Development Agency to intelligently assess the seriousness of the alleged violations. Neither does it provide sufficient information to permit the employer to determine what policies or practices are being complained of so as to know whether to fold or fight.” (*Ibid.*)

The *Alcantar* Court pointed out that “Section 2699.3(a)(1) was adopted as part of an amendment to PAGA, intended to cure perceived abuses of the Act. As the California Court of Appeal observed:

The Senate floor analysis stated ‘[the amendment] improves [the Act] by allowing the Labor Agency to act first on more serious violations such as wage and hour violations and give employers an opportunity to cure less ‘serious’ violations. The bill protects businesses from shakedown lawsuits, yet ensures that labor laws protecting California’s working men and women are enforced—either through the Labor Agency or through the courts.’ (*Dunlap v. Superior Court* (2006) 142 Cal.App.4<sup>th</sup> 330, 338-339 (quoting *Calif. S. Rules Comm., Off. of S. Floor Analyses, Bill Analysis for SB1809*, at 5–6 (Aug. 27, 2004).)” (*Alcantar v. Hobart Service* (2015) 800 F.3d 1047, 1057.)

The *Alcantar* Court went on to state:

“Plaintiff’s letter - a string of legal conclusions with no factual allegations or theories of liability to support them - is *insufficient to allow the Labor and Workforce Development Agency to intelligently assess the seriousness of the alleged violations. Neither does it provide sufficient information to permit the employer to determine what policies or practices are being complained of* so as to know whether to fold or fight. Thus, we affirm. This conclusion is consistent with our unpublished opinion in *Archila v. KFC U.S. Properties, Inc.* (2011) 420 Fed.Appx. 667, 669, in which we affirmed a district court’s dismissal of a PAGA claim, observing that ‘none of the materials Archila submitted to KFC or the LWDA contain ‘facts and theories’ to support his allegations’ and the demand letter ‘merely lists several *California Labor Code* provisions Archila alleges KFC violated and requests that KFC conduct an investigation.’ (See also *Amey v. Cinemark USA Inc.*, No. 13–CV–05669 (2015) 2015 WL 2251504, at \*13-14; *Soto v. Castlerock Farming & Transp. Inc.*, No. CIV–F–09–0701 (2012) 2012 WL 1292519, at \*7-8.)” (*Alcantar v. Hobart Service* (2015) 800 F.3d 1047, 1057-1058.)

However, *Santos v. El Guapos Tacos* (2021) 72 Cal.App.5th 363, 371-372 states in part: Defendants argue that because Labor Code section 2699.3 requires notice to the LWDA of “the facts and theories to support the alleged violation” (Lab. Code, § 2699.3, subd. (a)(1)), a plaintiff must identify “the group of other alleged employees that are also allegedly affected by the claimed wrongs.” But the statute refers to a violation in the singular, and it does not require “the ‘facts and theories’ provided in support of ‘alleged’ violations [to] satisfy a particular threshold of weightiness, beyond the requirements of nonfrivolousness generally applicable to any civil filing.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 545 [220 Cal. Rptr. 3d 472, 398 P.3d 69] (*Williams*)). We do not see how a general reference to “a group of others” or to “other aggrieved employees” is necessary to inform the LWDA or the employer of the representative nature of a PAGA claim. While we appreciate that uniquely individual claims would not satisfy the statute, a prefiling notice is not necessarily deficient merely because a plaintiff fails to state that she is

bringing her PAGA claim on behalf of herself *and others*. PAGA claims “function[] as a substitute for an action brought by the government itself.” [Citation.] Thus, PAGA claims, by their very nature, are only brought on a representative basis.” (*Mays v. Wal-Mart Stores, Inc.* (C.D.Cal. 2019) 354 F.Supp.3d 1136, 1149; *Huff, supra*, 23 Cal.App.5th at p. 760 [“The Labor Commissioner... has the authority to seek penalties for all known violations committed by an employer—just as a PAGA plaintiff has that authority when standing in the shoes of the Labor Commissioner”].) A PAGA judgment binds not only the named employee plaintiff but also any aggrieved employee not a party to the proceeding. (*Arias v. Superior Court* (2009) 46 Cal.4th 969, 985 [95 Cal. Rptr. 3d 588, 209 P.3d 923].)

Because a PAGA claim as a matter of law is a claim “brought by an aggrieved employee on behalf of himself or herself and other current or former employees” (Lab. Code, § 2699, subd. (a)), and because plaintiffs’ notice is not by nature or in context limited to an individual claim, plaintiffs’ failure to state “and other aggrieved employees” (or otherwise refer to an employee other than themselves) does not expressly or impliedly limit the alleged violations to plaintiff alone. Plaintiffs’ letter to the LWDA stated that over the course of five years, two employees were denied meal and rest breaks and not properly compensated for those violations, which could be proven through defendants’ time keeping records. The notice provided facts and theories sufficient to put the LWDA on notice of specified Labor Code violations, which satisfies the policy goal of Labor Code section 2699.3 subdivision (a). (See *Williams, supra*, 3 Cal.5th at p. 548 [“[s]tate regulation of employee wages, hours and working conditions is remedial legislation for the benefit of the state’s workforce,” and “[h]urdles that impede the effective prosecution of representative PAGA actions undermine the Legislature’s objectives”].) The notice allows the LWDA “to intelligently assess the seriousness” of the violations claimed, and gives defendants, who have access to their own timekeeping records, sufficient information “to determine what policies or practices are being complained of so as to know whether to fold or fight.” (*Brown, supra*, 28 Cal.App.5th at p. 837.)

[\*Rojas-Cifuentes v. Superior Court\* \(2020\) 58 Cal.App.5th 1051, 1060-1061](#), additionally states:

A complaint, as an analogue, is generally not deficient merely because it fails to describe the particular date when a defendant's misconduct began. (See *People v. Superior Court* (1973) 9 Cal.3d 283, 288 [107 Cal. Rptr. 192, 507 P.2d 1400] [complaint that accused the defendants of making false and misleading statements, but without noting “the time and place of the misrepresentations,” was not inadequate for that reason; “[i]f defendants require further specifics in order to prepare their defense, such matters may be the subject of discovery proceedings”].) And we see nothing in section 2699.3 suggesting that factual allegations in PAGA notices must exceed those normally found sufficient in complaints.

Nor do we find anything in PAGA as a whole supporting this proposition. To the contrary, taking our cues from *Williams*, we find that requiring some sort of heightened-pleading standard at the notice stage would “undercut the clear legislative purposes the act was designed to serve.” (*Williams, supra*, 3 Cal.5th at p. 546.) PAGA, again, sought to “expand[] the universe of those who might enforce the law, and the sanctions violators might be subject to,” to “remediate present violations [of the Labor Code] and deter future ones.” (*Williams*, at p. 546.) And, tweaking the *Williams* court's words slightly, we find “[t]hese purposes would be ill served by presuming, notwithstanding the failure explicitly to so indicate in the text, that deputized aggrieved employees must satisfy a PAGA-specific heightened [pleading] standard at the threshold, before discovery.” (*Ibid.*; see also *id.* at p. 548 [“Hurdles that impede the effective prosecution of representative PAGA actions undermine the Legislature's objectives.”].)

*Ibarra v. Chuy & Sons Labor, Inc.* (2024) 102 Cal.App.5th 874, 882-883, states in part:

The notice ““must be specific enough such that the LWDA and the defendant can glean the underlying factual basis for the alleged violations.”” (*Id.* at p. 350.) A ““written notice is sufficient so long as it contains some basic facts about the violations, such as which provision was allegedly violated and who was allegedly harmed.”” (*Ibid.*)

Our reading of PAGA's prefiling notice requirement is consistent with *Williams, supra*, 3 Cal.5th 531. In *Williams*, our Supreme Court examined the notification requirements of section 2699.3 in the context of whether a PAGA plaintiff “must have some modicum of substantial proof before

proceeding with discovery.” (*Williams*, at p. 545.) The court observed that “[n]othing in ... [former] section 2699.3, subdivision (a)(1)(A), indicates the ‘facts and theories’ provided in support of ‘alleged’ violations must satisfy a particular threshold of weightiness, beyond the requirements of nonfrivolousness generally applicable to any civil filing.” (*Ibid.*) Moreover, the court examined other statutory provisions within the PAGA framework and found “no evidence of a legislative intent to impose a heightened preliminary proof requirement” a plaintiff must satisfy before bringing a lawsuit. (*Williams*, at p. 546.) To insert a heightened requirement of proof “would undercut the clear legislative purposes the act was designed to serve.” (*Ibid.*)

Similarly, our view is that section 2699.3 does not impose a heightened requirement of defining aggrieved employees in the prelitigation notice. So long as the PAGA plaintiff provides facts and theories to support that alleged wage and hour violations were committed against them, and includes nonfrivolous allegations that other employees were similarly subjected to such practices, the notice is sufficient. Interpreting section 2699.3 to include an additional requirement to define aggrieved employees would be inconsistent with the purpose of PAGA, which is to “advance the state's public policy of affording employees workplaces free of Labor Code violations, notwithstanding the inability of the state agencies to monitor every employer or industry.” (*Williams, supra*, 3 Cal.5th at p. 546.) “Hurdles that impede the effective prosecution of representative PAGA actions undermine the Legislature's objectives.” (*Id.* at p. 548.)

Based on the contents of the PAGA notice, and the reasoning of *Santos* and *Rojas-Cifuentes* and *Ibarra*, the PAGA notice is sufficient to include the requisite facts and theories to support Plaintiff’s claim and therefore the Court OVERRULES the demurrer. The PAGA notice is long in that it is 17 pages long. As noted by Plaintiff in the opposition:

Plaintiff’s Notice not only includes facts as to her dates of employment, duties, and employers, but also lists out the specific Labor Code violations alleged and the legal theories applicable to each. For instance, with respect to the claim for civil penalties arising from Defendant’s violation of state law relating to the provision of mandatory meal periods, Plaintiff asserts a range of

specific factual allegations, including that Defendant was "...providing short meal periods, including without, limitation meal periods that were recorded for less than thirty minutes, and meal periods that may appear on the record to be thirty minutes or longer but in practice were shorter than thirty minutes due to time required to walk to and from a suitable break area, time spent having to wait in line to clock back in, having to don and doff safety gear during the meal period, having to undergo security or bag checks during the meal period, and /or having to retrieve and store personal belongings during the meal period; requiring that employees carry cellular telephones or walkie-talkies during meal periods; not permitting employees to leave the premises; otherwise requiring on-duty/on-call meal periods; and auto-deducting meal periods that could not be auto-deducted by law or during which employees worked." (Khakh Decl., Exhibit A, pg. 4.) With respect to the claim for unpaid minimum wages, Plaintiff alleges, among other facts, that Defendant was "...engaging, suffering, or permitting employees to work off the clock, including, without limitation, by requiring employees: to come early to work and leave late work without being able to clock in for all that time, to suffer under Employer's control due to long lines for clocking in, to complete pre-shift tasks before clocking in and post-shift tasks after clocking out, to clock out for meal periods and continue working, to clock out for rest periods, to don and doff uniforms and/or safety equipment off the clock, to undergo security checks and/or bag checks off the clock, to store and retrieve personal belongings off the clock, to attend company meetings off the clock, to make phone calls, receive and respond to emails and/or texts, or drive off-the-clock..." (Khakh Decl., Exhibit A, pg. 3.) With respect to reimbursement claims, Plaintiff's Notice states that Defendant "failed and refused, and continues to fail and refuse, to reimburse employees, including, without limitation, Employee and other Aggrieved Employees, with their costs incurred for driving personal vehicles (i.e., mileage and gas), purchasing uniforms, providing uniform and other deposits, separately laundering mandatory uniforms, for the purchase of tools and safety equipment, and for the purchase and maintenance of cellular phones and cellular phone plans, for pre-employment medical, physical or drivers' exams taken as a condition of employment, or for compelling or coercing Employee and

Aggrieved Employees, including applicants, to patronize in the purchase of a value or things, including, without limitation, the Employer's product(s) and/or service(s), in direct consequence of the discharge of their duties, or of their obedience to the directions of Employer..." (Khakh Decl., Exhibit A, pg. 9.) Each allegation specifies that these policies, practices, and procedures applied to the Employee (defined as Plaintiff) and Aggrieved Employees throughout the Notice. (Opposition at pp. 7:24-8:28.)

Therefore, the Court finds the PAGA notice sufficient and overrules the demurrer.

### MOTION TO STRIKE

Defendant HHC brings this Motion seeking an order from the Court: (1) striking Plaintiff's class and representative PAGA claims because she failed to satisfy her PAGA prefiling requisite, she lacks standing to bring her claims, and her claims are not manageable as pled, or, in the alternative (2) bifurcating discovery to require individual discovery before Plaintiff is permitted to engage in class-wide discovery.

The same declaration of John S. Keeney, Esq. and request for judicial notice was filed. However, in addition a declaration was filed by Cathy West, Director of Quality Assurance and Risk Management for HHC in this action, a healthcare provider designed to meet the needs of both short-term rehabilitation and long-term care residents. HHC provides skilled nursing and rehabilitation. The declaration then continued that Plaintiff worked a total of eight shifts in 2024 and introduced pay records, and other factual discrepancies with regard to off the clock and bonds for uniforms. The motion argues that Court should strike the PAGA and Class allegations and dismiss the claims.

Statement of Law. The court may, upon a motion made pursuant to Code Civ. Proc., §435, or at any time in its discretion, and upon terms it deems proper, strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435 & 436.) Motions to strike are disfavored, and the policy is to construe the pleadings liberally, with a view toward substantial justice. (Code Civ. Proc.,

§452.) Code Civ. Proc., §436, subd. (a), provides the court may strike any irrelevant, false or improper matter in a pleading. “Irrelevant” is any immaterial allegation in the complaint.

“Immaterial” is any of the following:

- (1) An allegation that is not essential to the statement of a claim or defense.
- (2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense.
- (3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc., § 431.10, subd. (b).)

A motion to strike can be used to attack the entire pleading, or any part thereof, i.e., even single words or phrases. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) Although a motion to strike can reach conclusory allegations, such language cannot be stricken where the complaint contains sufficient facts to support such an allegation. (*Perkins v. Sup. Ct. (General Tel. Directory Co.)* (1981) 117 Cal.App.3d 1, 6.) “The distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree.” (Id.) “What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief.” (Id.)

Similar to a demurrer, the grounds on a motion to strike shall appear on the face of the challenged pleading or from matters that are judicially noticed. (Code Civ. Proc., § 437.)

Additionally, the allegations are read as a whole, with all parts in their context, and assumed true. (*Clauson v. Superior Court* (1989) 67 Cal.App.4th 1253, 1255.)

As noted by Plaintiff, this appears to be a motion to strike like that of *In re BCBG Overtime Cases* (2008) 163 Cal.App.4th 1293, 1298-1299. That matter was filed in 2002 and the motion was made in 2007 after other cases had been consolidated. The Court stated:

Class certification is generally not decided at the pleading stage of a lawsuit. “[T]he preferred course is to defer decision on the propriety of the class action until an evidentiary hearing has been held on the appropriateness of class litigation.” (*Rose v. Medtronics, Inc.* (1980) 107

Cal.App.3d 150, 154 [166 Cal. Rptr. 16].) However, if the defects in the class action allegations appear on the face of the complaint or by matters subject to judicial notice, the putative class action may be defeated by a demurrer or motion to strike. (*Id.* at p. 154.) BCBG's "motion to strike" was not a motion to strike as used during the pleading stage of a lawsuit in both California and federal procedure. (Code Civ. Proc., § 435; Fed. Rules Civ.Proc., rule 12(f), 28 U.S.C.) It was a motion seeking to have the class allegations stricken from the complaint by asking the trial court to hold an evidentiary hearing and determine whether Plaintiffs' proposed class should be certified. "A motion to strike class allegations is governed by Rule 23, not Rule 12(f). Rule 23 requires that the Court decide the certification issue at the earliest time possible." (*Bennett v. Nucor Corp.* (E.D.Ark., July 6, 2005, No. 3:04CV002915WW) 2005 WL 1773948, at p. \*2, fn. 1.) Under both California and federal law, either party may initiate the class certification process.

Here, the motion seeks to strike everything at the beginning by submitting a declaration that is not even able to be considered at this time because it seeks to bring in facts which are not a part of the SAC. The Court finds the PAGA notice proper based upon the relevant case law and therefore the Court DENIES the motion to strike.

### RULING

For all the reasons stated above, the Court:

1. FINDS a proper meet and confer;
2. RULES on the requests for judicial notice and objections as listed above;
3. OVERRULES the demurrer and DENIES the motion to strike;
4. ORDERS the Defendant to file an answer within 20 days from the date of this ruling; and,
5. ORDERS Plaintiff's counsel to give notice of the Court's ruling.